IN THE NATIONAL COMPANY LAW TRIBUNAL
SPECIAL BENCH III, AT NEW DELHI

UNDER SECTIONS 230-232 and other applicable provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

CA (CAA)-45(ND)/2022

IN THE MATTER OF SCHEME OF AMALGAMATION OF

SARVAMANGAL TRADELINK PRIVATE LIMITED
...(Transferor / Applicant Company No. 1)

AND
ROCKLAND TRADELINK PRIVATE LIMITED
...(Transferor / Applicant Company No.2)

WITH
GREAT INDIA CREATIVE PRIVATE LIMITED
...(Transferee Company / Applicant Company No. 3)

Order delivered on: 30.11.22

CORAM:

SH. BACHU VENKAT BALRAM DAS
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant: Adv. Amit Goel, Adv. Deepali Mittal

ORDER

Per- BACHU VENKAT BALARAM DAS, Member (Judicial)

1. This is a 1st Motion Petition filed by the applicant companies seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Transferor Companies and Transferee Company.

Heard Ld. Counsel appearing for the Applicant Companies.

It is represented that the registered office of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said Application falls within the jurisdiction of this Tribunal.

Ld. Counsel has given the brief description of the Transferor and Transferee Companies, which are :-

I. SARVAMANGAL TRADELINK PRIVATE LIMITED

(Transferor Company/Applicant Company No. 1)

The company is incorporated under the Companies Act, 1956 and is having its registered office at 405, Krishna Apra Business Square, Netaji Subhash Place, Pitampura Delhi-110034 and is having its CIN U51909DL2010PTC288536. The authorized share capital of the company is Rs 4,00,00,000/- and the paid-up share capital is Rs 3,80,98,000/-

As regards, Transferor Company No 1, as on 31.03.2022, the Company has 2 Shareholders and all the Shareholders have given their consent to the Scheme and these consent are placed on record at page 137 of this instant petition. There are no Secured Creditors and there are 3 Unsecured Creditors and all have given their consent which are placed at pages 151 to 159 of this instant petition.

II. ROCKLAND TRADELINK PRIVATE LIMITED

(Transferor Company/Applicant Company No. 2)

The company is incorporated under the provisions of the Companies Act, 1956 and having its registered office at 405, Krishna Apra Business Square, Netaji Subhash Place, Pitampura Delhi-110034 and bearing CIN U51909DL2010PTC288380. The authorized share capital of the company is Rs 1,00,000/- and the paid-up share capital is Rs 1,00,000/-

As regards, Transferor Company No. 2, there are 2 Shareholders who have given their consent are placed on record at page 201 of this instant petition. As on 31.03.2022, there are no Secured Creditor and there are 2 Unsecured Creditors and all have given their consent which are placed at pages 212 to 217 of this instant petition.

III. GREAT INDIA CREATIVE PRIVATE LIMITED

(Transferee Company / Applicant Company No. 3)

The company is incorporated under the provisions of the Companies Act, 1956 and having its registered office at 405, Krishna Apra Business Square, plot No. 4,5,6 Netaji Subhash Place, Pitampura Delhi-110034 and bearing CIN U36912DL2012PTC230969. The authorized share capital of the company is Rs 10,00,000/- and the paid-up share capital is Rs 1,00,000/-

As regards, Transferee Company, there are 2 Shareholders who have given their consent for the present Scheme consent are placed on record at page 260 of this instant petition. As on 31.03.2022, there are no Secured Creditor and there are 5 Unsecured Creditors all have given their consent which are placed at pages 273 to 289 of this instant petition.

2. Ld. Counsel appearing for the Applicant Companies has prayed for dispensation of calling/convening/holding and conducting of meetings of the Shareholders, Secured Creditors and Unsecured Creditors of all the applicant companies.
3. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the said prayer for the dispensation of the meetings of the Shareholders, and unsecured Creditor of the applicant companies.

Sd

Since there are no secured creditors in any of the petitioner companies the question of dispensation of their meeting does not arise.

4. The Applicant Companies No.1, No.2, No. 3 are further directed to serve notice along with copy of scheme upon:

(1) The Regional Director (Northern region), Ministry of Corporate Affairs, Delhi.

(2) The Registrar of Companies, NCT of Delhi & Haryana.

(3) Income Tax Authority within whose jurisdiction the Applicant Companies No. 1, No. 2 No. 3 are assessed.

(4) Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-11001 and any sectoral authorities who may have bearing on the operation of the Applicant Companies No.1 . No.2, No.3 pursuant to Section 230(5) of the Companies Act, 2013 and Rule 8 of the Companies (Compromises Arrangements and Amalgamations) Rules, 2016.

If no response is received by the Tribunal from such authorities within 30 days of the date of receipt of the notice, it will be presumed that they have no objection to the proposed Scheme.

5. With the above directions, the present petition is **disposed of.**

-Sd-

(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

-Sd-

(SH.BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)